

Landfill, Crematory, and Non-Technical Updates 2026 Draft Fiscal Impact Statement

Introduction

DEQ invites public input on proposed permanent rule amendments to chapter 340 of the Oregon Administrative Rules.

Fee analysis

This rulemaking does not involve fees.

Statement of fiscal and economic impact

Fiscal and economic impact

There are two main fiscal impacts of the proposed rules.

First, the proposed rules addressing SB726 require advanced methane detection technology to be used at municipal solid waste landfills in Benton County will have a fiscal impact on the one source that will be required to perform this monitoring. The source will be required to pay for staff, consultants, or third-party contractors to perform monitoring in accordance with the proposed rules. DEQ proposes to allow landfills outside of Benton County to use this advanced methane detection technology. If a landfill chooses to use this advanced technology, it would be on a voluntary basis and at the discretion of the landfill owner.

Second, the proposed rules addressing HB 3729 which establish an upper limit on the required operating temperature for crematory incinerators may have a positive fiscal impact on crematory incinerators owners and operators who have installed an incinerator on or after March 13, 1993. These owners and operators may burn less fuel operating at a lower temperature and are expected to see an overall reduction in their operational costs. Owners and operators of crematory incinerators that were installed prior to this date remain subject to the same temperature limit of 1,600° F and are not expected to have a fiscal impact.

The non-technical updates are not expected to have a fiscal impact.

Statement of cost of compliance

State agencies

There are no impacts expected for state agencies as a result of this rulemaking.

Local governments

Landfills: The proposed landfill advanced methane detection monitoring rules do not apply to any local governments directly.

Crematory Temperatures: For any local governments that own or operate a crematory incinerator, the municipal government should expect their operational costs to either remain the same or be reduced based on the date the crematory incinerator was installed.

Non-technical updates are not expected to have a fiscal impact on local governments.

Public

The public is not directly regulated by the proposed rules. However, owners and operators of facilities affected by this rulemaking could pass costs or savings on to the public by changing the costs of goods or services. DEQ does not have available data or information to estimate the public impacts further. In addition, if other landfills voluntarily use the proposed advanced methane detection monitoring technology, DEQ expects the public will experience benefits from reduced methane emissions from landfill operations.

Large businesses - businesses with more than 50 employees

Crematory Temperatures: For large businesses, the cost to comply with the proposed crematory incinerator rules is identical to costs described under local governments.

Landfills: For large businesses, the cost to comply with the proposed landfill rules is identical to costs described under local governments. The one municipal solid waste landfill in Benton County that will be subject to the proposed enhanced monitoring rules will need to pay for monitoring services or staff to perform monitoring according to the proposed rules.

DEQ obtained cost estimates from [Sniffer Robotics, Inc.](#), a company who performs landfill surface monitoring that would be compliant with the proposed rules. For a landfill that is approximately 150 acres, the cost for an initial visit is \$10,000. The initial visit cost includes getting the monitoring staff to the site and performing monitoring of the landfill surface. The rules require that surface emissions monitoring take place quarterly, meaning this initial visit cost would be incurred four times per year. The total annual cost for four visits would be approximately \$40,000.

Landfill rules in Division 239 require owners and operators to take corrective actions when the monitoring identifies a surface leak, then remonitor the locations where leaks were identified to ensure they have been fixed. This remonitoring event costs approximately \$2,500 but can increase in cost if there are a significant number of locations to remonitor. For this fiscal estimate, DEQ assumed that each quarter the owner or operator will have two remonitoring events. In any quarter where there is an additional remonitoring event, the overall cost will go up \$2,500 per occurrence.

- \$10,000 per quarter for initial monitoring, 4 Quarters = \$40,000
- \$2,500 per remonitor, two remonitoring each quarter, 4 Quarters = \$20,000.

- Total expected annual fiscal impact: \$60,000

Small businesses – businesses with 50 or fewer employees

For small businesses, the cost to comply with the crematory incinerator proposed rules is the same as the costs described under local governments.

No small businesses are expected to be affected by the proposed landfill advanced methane detection monitoring rules.

ORS 183.336 Cost of Compliance Effect on Small Businesses

- a. Estimated number of small businesses and types of businesses and industries with small businesses subject to proposed rule.

DEQ has issued 15 Basic Air Contaminant Discharge Permits to crematory incinerator owners and operators who incinerate less than 20 tons per year.

DEQ has assigned 73 facilities to the General Air Contaminant Discharge Permit for crematory incinerator operations with 20 or more tons per year incinerated.

Assuming all Basic and General ACDP holders are small businesses, these proposed rules could affect 88 small businesses.

There are no small businesses subject to the proposed landfill advanced methane detection rules.

- b. Projected reporting, recordkeeping and other administrative activities, including costs of professional services, required for small businesses to comply with the proposed rule.

The proposed crematory incinerator rules do not require any additional activities.

- c. Projected equipment, supplies, labor and increased administration required for small businesses to comply with the proposed rule.

The proposed crematory incinerator rules will not require any additional resources.

- d. Describe how DEQ involved small businesses in developing this proposed rule.

DEQ included small business representatives on the Advisory Committee that advised DEQ on the cost of compliance for small businesses, including the owner of a crematory incinerator and funeral home.

As the fiscal impact is expected to save facilities money or have no impact, DEQ will communicate with current permit holders when their permit is proposed to be revised, reissued, or reassigned to reflect the temperature changes.

Documents relied on for fiscal and economic impact

Document title	Document location
List of Air Quality Permits	DEQ Headquarters 700 NE Multnomah St. Suite 600 Portland OR, 97232

Advisory committee fiscal review

DEQ appointed an advisory committee.

As ORS 183.333 requires, DEQ will ask for the committee's recommendations on:

- Whether the proposed rules would have a fiscal impact.
- The extent of the impact.
- Whether the proposed rules would have a significant adverse impact on small businesses; if so, then how DEQ can comply with ORS 183.540 to reduce that impact.

The committee will review the draft fiscal and economic impact statement, and document its recommendations in the meeting summary.

Housing cost

As ORS 183.534 requires, DEQ evaluated whether the proposed rules would have an effect on the development cost of a 6,000-square-foot parcel and construction of a 1,200-square-foot detached, single-family dwelling on that parcel.

DEQ determined the proposed rules would have no effect on the development costs.

For the crematory incinerator changes, owners and operators will have no impact or a positive impact, but these changes are unlikely to impact housing costs.

The landfill monitoring changes are unlikely to have an effect on housing costs. DEQ does not have further information on whether this will occur and will not further speculate regarding how business owners may pass along costs to consumers.

Racial equity

ORS 183.335(2)(a)(F) requires state agencies to provide a statement identifying how adoption of this rule will affect racial equity in this state.

Staff anticipate limited to no impacts on racial equity in the state resulting from the proposed rules. Adoption of the proposed rules would affect crematory incinerator owners and operators across the state and one municipal solid waste landfill in Benton County. Since the proposed rules will apply equally across all crematory incinerators and to one specific facility in Benton County, there is no expected impact on racial equity in the state. Establishing these requirements, as proposed, will align Oregon Administrative Rules with Oregon Revised Statutes as necessary to protect public health.

Environmental justice considerations

ORS 182.545 requires natural resource agencies to consider the effects of their actions on environmental justice issues. Environmental justice is the fair treatment and meaningful involvement of all people regardless of race, color, national origin, culture, education or income with respect to the development, implementation and enforcement of environmental laws, regulations and policies.

DEQ is committed to incorporating environmental justice best practices into its programs and decision-making, to ensure all people in Oregon have equitable environmental and public health protections. The DEQ Air Contaminant Discharge Permit and Title V Operating Permit programs are designed to regulate and reduce emissions from facilities in Oregon. Environmental justice communities are often fence-line communities that are disproportionately affected by pollution. Adopting the proposed rules includes statutory updates required of the air program that are expected to reduce emissions from crematory incinerators and more effective surface emissions monitoring at the Benton County landfill. Overburdened communities may see environmental benefits from these changes.

Non-discrimination statement

DEQ does not discriminate on the basis of race, color, national origin, disability, age, sex, religion, sexual orientation, gender identity, or marital status in the administration of its programs and activities.

For translation or other formats, visit DEQ's [Civil Rights and Environmental Justice page](#).